

25STCV05328 25STCV05328

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-08-04

Motion: DEFENDANT'S MOTION TO COMPEL PLAINTIFF SANDRA CASTILLO TO APPEAR FOR DEPOSITION;
REQUEST FOR SANCTIONS IN THE AMOUNT OF \$4,650.00

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C731%2C08%2F04%2F2026

Source SHA-256: e4c2cc6fe6aaf62cb13ce6b6303e722ef14800544d77ebec3714725722ce922c

Case Number: 25STCV05328 Hearing Date: August 4, 2026 Dept: 731

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

SANDRA CASTILLO,

Plaintiff,

vs.

YOUNG MEN'S CHRISTIAN
ASSOCIATION

OF GREATER LONG BEACH, CLAUDIA

MENDOZA, ALVARO RODRIGUEZ, and

DOES 1 – 100, inclusive,

Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

CASE NO: 25STCV05328

[TENTATIVE] ORDER RE: DEFENDANT'S
MOTION TO COMPEL

PLAINTIFF SANDRA CASTILLO TO

APPEAR FOR DEPOSITION;
REQUEST

FOR SANCTIONS IN THE AMOUNT
OF

\$4,650.00

Dept. 731

August 4, 2026

8:30 A.M.

Moving Party: Plaintiff, Sandra Castillo

Opposing Party: None

Notice: OK

Background Facts

Plaintiff Sandra Castillo sues

Defendants Young Men's Christian Association of Greater Long Beach ("YMCA"),
Claudia Mendoza ("Mendoza"), Alvaro Rodriguez ("Rodriguez"), and Does 1-100
pursuant to a February 25, 2025, Complaint alleging statutory and common law
claims arising from Plaintiff's employment and termination of employment with
Defendant YMCA.

Now before the Court is Defendant

YMCA's motion to compel Plaintiff's initial deposition, and request for
monetary sanctions against Plaintiff and Plaintiff's counsel in the amount of \$4,650.00.

Motion to Compel

Deposition and Request for Sanctions

a. Motion

to Compel Deposition

i.

Legal Standard

After a deposition notice has been properly served, if the party or designated deponent does not serve a valid objection pursuant to section 2025.410 and then fails to appear, fails to proceed with the deposition, or fails to produce the documents or other materials identified in the notice, the noticing party may move for a court order compelling the deponent to appear, testify, and produce the requested materials. (Code Civ. Proc., § 2025.450, subd. (a).)

Section 2025.450 contains no time limit for a motion to compel where a party fails to attend the deposition or produce any documents after valid service of the deposition notice and no objections have been made. (See Code Civ. Proc., § 2025.450, subds. (a)-(i)(2).)

If the motion seeks to compel production of documents, the motion must be accompanied by a showing of “good cause,” i.e., declarations containing specific facts justifying inspection of the documents described in the notice. (Code Civ. Proc., § 2025.450, subd. (b)(1); see Code Civ. Proc., § 2016.040.)

No “meet and confer” is required where the deponent “fails to attend the deposition and produce the documents ... described in the deposition notice.” In such cases, all that is required is a declaration by the moving party that the party has contacted the deponent “to inquire about the nonappearance.” (Code Civ. Proc., § 2025.450, subd. (b)(2).)

ii.

Discussion

After review, the Court finds in

favor of Defendant YMCA, in part.

1. Compelling Deposition

Defendant YMCA properly served deposition notices on Plaintiff on May 15, 2025, and April 17, 2026, both via service on counsel. (Motion, Valenti Decl., ¶¶ 6, 12, Exs. 1, 5.)

Plaintiff failed to raise valid objections pursuant to section 2025.410, where section 2025.410 contemplates objections for failure to comply with the requirements of Code of Civil Procedure sections 2025.210 to 2025.295. (See Motion, Valenti Decl., ¶¶ 7, 13, Exs. 2, 6 [Plaintiff's written objections to deposition notices, failing to show objections pursuant to sections 2025.210 to 2025.295].)

Plaintiff did not appear for her noticed depositions (Motion, Valenti Decl., ¶¶ 6-15, Exs. 1-8), nor has she appeared for a deposition to date. (See Reply, Valenti Decl., ¶ 14-17.)

And Defendant YMCA provides extensive evidence to show it followed up with Plaintiff regarding her non-appearance. (See Motion, Valenti Decl., ¶¶ 6-17.)

As a result, an order compelling Plaintiff's deposition is properly supported by the papers.

The Court briefly notes that it finds no merit to the opposition argument that Defendant YMCA's motion is mooted by Plaintiff's mere offering of deposition dates. (Opposition pp. 6-7.) Unless a deposition has actually gone forward, the relief sought in Defendant YMCA's motion remains a live controversy.

Section 2025.450 does not require traditional meet and confer efforts before filing a motion based on a party's failure to appear. Rather, the noticing party needs only contact the deponent regarding the nonappearance. (Code Civ. Pros., section 2025.450, subd. (b)(2)(Opposition p. 6.)

2. Compelling

Production of Documents in Deposition Notice

Separately, Plaintiff did not produce documents in response to the deposition notices, only serving substantive objections. (See Motion, Valenti Decl., ¶¶ 7, 13, Exs. 2, 6.)

However, the declaration of counsel attached to Defendant YMCA's motion fails to advance specific facts justifying inspection of the documents described in the notice. (See Motion, Valenti Decl., ¶¶ 1-21; see also Reply, Valenti Decl., ¶¶ 3-19, Exs. 1-4 [discussing production generally but not establishing facts supporting relief].)

Consequently, relief as to production of documents is not supported by the papers.

iii.

Conclusion

Accordingly, Defendant Young Men's Christian Association of Greater Long Beach's motion is:

(1) GRANTED

as to compelling the deposition of Plaintiff; and

(2) DENIED

as to compelling production of documents pursuant to deposition notice.

b. Request

for Monetary Sanctions

i.

Legal Standard

If a motion pursuant to section 2025.450, subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., § 2025.450, subd.

(g)(1).)

The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed. (Cal. Rules of Court, rule 3.1348, subd. (a).)

ii.

Discussion

Defendant YMCA also seeks \$4,650.00 in sanctions against Plaintiff for failure to attend deposition, with the monetary amount sought in sanctions comprising hours spent by counsel in relation to attempting to depose Plaintiff.

Plaintiff argues that monetary sanctions are not merited because she has acted with substantial justification where she has offered multiple deposition dates even if she has failed to appear for deposition, she has engaged in good faith meet and confer efforts via counsel, with multiple discovery issues outstanding and at play, and Defendant's own conduct undermines relief. (Opposition, p. 7.)

After review, the Court GRANTS sanctions in the amount of \$2,325.00.

The sanction is reduced because defendant prevailed only in part, the court finds a reduced sanctions award appropriate.

iii.

Conclusion

Defendant Young Men's Christian Association of Greater Long Beach's request for monetary sanctions is GRANTED, in part, in the amount of \$2,325.00.

Defendant Young Men's Christian Association of Greater Long Beach is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative

as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: August 4, 2026 _____

MARK C. KIM

Judge of the
Superior Court